

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE
FOR

HOUSE BILL NO. 4294

Pae of the House

and

Stanley of the Senate

COMMITTEE SUBSTITUTE

An Act relating to health insurance; directing fair coverage for individuals with epilepsy; disallowing termination of coverage for individuals diagnosed with epilepsy; providing coverage for devices or surgeries for epilepsy if certain criteria are met; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 6060.31 of Title 36, unless there is created a duplication in numbering, reads as follows:

A. All individual and group health insurance policies that provide medical and surgical benefits shall provide the same coverage and benefits to any individual who has been diagnosed with

1 epilepsy as the policy would provide coverage and benefits to an
2 individual who has not been diagnosed with epilepsy.

3 B. No insurer shall terminate coverage or refuse to renew an
4 individual's health insurance coverage solely based upon the
5 individual's diagnosis of epilepsy.

6 C. To reduce the risk of death from sudden unexpected death in
7 epilepsy (SUDEP), all individual and group health insurance policies
8 that provide medical and surgical benefits shall adopt medical
9 policies that provide coverage for medically necessary
10 neurostimulation devices if prescribed by a licensed physician who
11 is actively treating the enrollee.

12 SECTION 2. This act shall become effective November 1, 2026.

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